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legislation - California Democrat tries again to tax guns, ammunition

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A California Democrat is continuing a years-long push to impose a state tax on guns and ammunition that lawmakers have long debated with little success.

Assemblyman Jesse Gabriel, D-Woodland Hills, authored a bill that would levy an 11% excise tax on firearm dealers, manufacturers and ammunition vendors for receipts on guns, gun parts and ammunition.

The measure would create the Gun Violence Prevention, Healing, and Recovery Fund at the state Treasurer's Office, which would distribute the money to various violence prevention initiatives. It would take effect in January 2024.

Gun owners already pay a federal tax of 10 to 11% on firearms and ammunition, with the proceeds going to wildlife conservation efforts. Gun rights advocates call the state proposal "punitive."

The Assembly Public Safety Committee approved Gabriel's bill, with members of Moms Demand Action for Gun Sense in America showing their support in the audience.

"We are talking about a very modest tax here that would simply … put human life on the same equal playing field that we now have for funding there for wildlife," Gabriel said during the committee hearing. "Which to me, seems absolutely absolutely common sense."

Gabriel has taken up the gun tax mantle from former Assemblyman Marc Levine, D- San Rafael, who tried multiple times to pass a similar bill. Levine's most recent attempt failed on the Assembly floor in August 2022.

Mike McLively, director of the Giffords Center for Violence Intervention, said the tax is appropriate, given increasing amounts of gun violence and significant firearm industry profits.

"The firearm industry sells products that are regularly stolen and diverted to illegal markets and otherwise used to kill and injure tens of thousands of Californians every single year," McLively said. "It's more than reasonable to ask the industry to pay a modest amount of its record profits to help mitigate the extreme harm that is done by its products."

Representatives from the National Rifle Association and the California Waterfowl Association told committee members the tax unfairly punishes law-abiding firearm owners and hunters.

Dan Reid, NRA Western Regional director, said if passed the tax would be met with a legal challenge it wouldn't survive.

"This tax is punitive in nature," Reid said. "It's separating out gun owners because they're exercising their constitutional right. And this is a matter of public safety. And matters of public safety should be borne by the public as a whole."

Committee members were supportive of Gabriel's bill. Assemblywoman Mia Bonta, D- Oakland, pointed out Gabriel's gun excise tax would be lower than the state's current 15% cannabis excise tax.

Committee Chair Reggie Jones-Sawyer, D- Los Angeles, commended lawmakers for their willingness to consider gun legislation, saying it "makes (him) proud to be in California."

“If we were in Tennessee, I would be kicked out of the state Legislature right now,” Jones-Sawyer said, referring to two lawmakers who were expelled from the state’s House of Representatives for participating in gun control protests.

“In Tennessee, you can’t even get this far with legislation. So we should be really proud about what we’re doing here in California.”

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